

		“Express indemnity generally is not subject to equitable considerations or a joint legal obligation to the injured party; rather, it is enforced in accordance with the terms of the contracting parties' agreement... [i]n this sense, express indemnity allows contracting parties ‘great freedom to allocate [indemnification] responsibilities as they see fit,’ and to agree to ‘protections beyond those afforded by the doctrines of implied or equitable indemnity.’” (<i>Prince v. Pacific Gas & Electric Co.</i> (2009) 45 Cal.4th 1151, 1158 [internal citations omitted].) Mission argues that Welltower is not liable to Plaintiff, and also that Mission is not liable to Plaintiff (due to the workers’ compensation exclusivity doctrine). However, Welltower’s claim for express indemnity is not conditioned upon Mission (or Welltower) ultimately being found liable. Because of this, the motion for summary judgment is denied as there is a triable issue of fact concerning the application of the express indemnity agreement between the parties. Cross-Complainant Welltower Mission Viejo Medical Center JV, LLC shall give notice.
108	2023-01320118 West vs. Zacky	1. Motion for Sanctions 2. Motion to Disqualify Attorney of Record No tentative ruling issued.
109	2025-01534663 Beyene vs. Pavia	1. Motion to Quash Service of Summons 2. Case Management Conference Specially-appearing defendant Sigma Pi Fraternity International, Inc.’s (“SPFI”) Motion to Quash Service of Summons and Compliant is granted. Plaintiffs’ unopposed request for judicial notice is granted. The Court notes that the hearing on this motion was continued to allow Plaintiffs an opportunity to conduct jurisdictional discovery and to provide the parties with an opportunity to file supplemental briefing. (ROA 70.) The Court, having taken into account the original briefing, the supplemental briefing, and the evidence presented therewith, finds that the motion should be granted. This action arises from the tragic death of Simon Daniel. His mother brings this action for wrongful death and survival on behalf of Daniel’s estate and on her own behalf. (ROA 10.) Daniel is alleged to have “died as a result of a hazing incident on May 17, 2025,” during which time he was a “resident of the State of California.” (FAC at ¶ 5.) Daniel is alleged to have boarded a boat, while at Lake Havasu in Arizona, with other members of CSUF’s Sigma Pi Fraternity, Epsilon Nu Chapter. Daniel was allegedly prevented from re-entering the boat “as a part of a hazing ritual,” which forced him to “stay in the water for an unreasonable amount of time,” and resulted in his drowning and death. (FAC at ¶¶ 19-25.) SPFI is alleged to be the national organization of which Sigma Pi was a local chapter, which “controls and monitors the day-to-day activities of its local chapter, Sigma Pi.” (FAC at ¶¶ 20-21.) Defendants are alleged to have “directed, encouraged, authorized, ratified, and/or contributed to the hazing that occurred on the day of the incident,” and to have “negligently organized, managed, supervised, advertised, and trained in connection with the boat trip which resulted in the death of” Daniel. (FAC at ¶¶ 26-27.) Presently, SPFI specially appears and moves under CCP sections 410.10 and 418.10(a)(1)